

25STCV08535 25STCV08535

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-08-31

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Case Number: 25STCV08535 Hearing Date: August 31, 2026 Dept: 408

Plaintiff Clayton Lind's Motion
to Stay Proceedings is DENIED.

I.

BACKGROUND

On March 24, 2025, Plaintiff Clayton
Lind ("Plaintiff") filed a complaint against Defendant General Motors, LLC
("Defendant") alleging causes of action for:

1.

Violation of Subdivision (d) of Civil Code Section
1793.2;

2.

Violation of Subdivision (b) of Civil Code Section
1793.2;

3.

Violation of Subdivision (a)(3) of Civil Code
Section 1793.2;

4.

Breach of the Implied Warranty of Merchantability;
and

5.

Fraudulent Inducement – Concealment.

On August 27, 2025, Plaintiff filed a First Amended Complaint ("FAC").

On December 11, 2025, the court overruled Defendant's Demurrer to Plaintiff's FAC.

On March 10, 2026, Defendant filed an answer to Plaintiff's FAC.

On June 23, 2026, Plaintiff filed this Motion to Stay Proceedings. On August 18, 2026, Defendant filed an opposition. As of August 26, 2026, no reply has been filed.

II.

LEGAL

STANDARD

A court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice. (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 141.) The power to stay proceedings is incidental to the power inherent in every court to control the disposition of the cause on its docket with the economy of time and effort for itself, for counsel, and for litigants. (Ibid.)

III.

DISCUSSION

Plaintiff moves to stay all proceedings pending resolution of the appeal in Price v. General Motors arguing that such decision will determine a novel issue splitting the trial courts concerning whether a manufacturer's post-filing election into the Song-Beverly Act's new procedural regime can retroactively time-bar a complaint that was already on file when the new statutes of repose and limitations took effect. (Motion, at p. 3.)

In

opposition, Defendant argues that a stay creates an indefinite delay in litigation will prejudice Defendant and is merely a delay tactic. (Opp., at pp. 4-7.)

The court finds that a discretionary stay is not warranted. Plaintiff seeks a stay for an unknown period of time due to an appeal pending in an adjacent matter. This prejudices Defendant who is still litigating the surviving fraud-concealment claim. Second, Plaintiff is free to file a motion for reconsideration after the Court of Appeal rules, as needed. Therefore, the court is not inclined to exercise its discretion to issue a stay.

Accordingly, the motion is denied.

IV.

CONCLUSION

Plaintiff

Clayton Lind's Motion to Stay Proceedings is DENIED.